

SOLVED PRACTICE WORKBOOK

Justice: Concepts and Dimensions - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Justice: Concepts and Dimensions

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

1 Gauba's Allocative Frame, Rightness and Dynamic Justice

2 Traditional Justice, Social Justice and Barker's Ordering

3 Law, Legality and the Institutional Dimensions of Justice

4 Aristotle, Distribution and Corrective Justice

5 Procedural Liberalism, Background Inequality and Macpherson

6 Nozick, Merit, Need and Desert

7 Rawls, Sen and the Information of Justice

8 Recognition, Representation and Indian Applications

9 Objection-Reply Chains and Directive Control

10 Argument Architecture, Provenance and Final Recall

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Justice: Concepts and Dimensions - Solved Practice Workbook

Generation: learner-v2:g2 **PYQ ownership:** Every verified question below retains the primary owner recorded in the source ledger.

BASIC MCQS / REMEDIATION

MCQ 1

A commission is deciding how scarce public benefits and burdens should be allocated under publicly contestable criteria. Which statement frames the justice issue while preserving the scope limitation?

- A. Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gaubu, PDF pp.432-433).
- B. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- C. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- D. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).

Answer: A

Explanation: The canonical Basic owner pairs **Justice** with **Gaubu introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gaubu, PDF pp.432-433)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 2

A scholarship board must allocate limited places under criteria that citizens may publicly challenge and revise. Which concept best frames the issue without claiming that every justice question requires scarcity?

- A. Need
- B. Justice
- C. Alf Ross
- D. F.A. Hayek

Answer: B

Explanation: The canonical Basic owner pairs **Gaubu introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gaubu, PDF pp.432-433)**. with **Justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 3

Citizens may criticise an inherited distribution and trigger institutional revision through public reasoning. Which statement explains the condition that makes this contest possible?

- A. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442).
- B. Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaubu, PDF pp.436-440).
- C. A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaubu, PDF p.433).
- D. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.

Answer: C

Explanation: The canonical Basic owner pairs **Open society** with **A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaubu, PDF p.433)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 4

Two states use the same allocation rule, but only one permits criticism, appeal and revision of the rule. Which setting does the second state illustrate?

- A. F.A. Hayek
- B. Desert
- C. Law according to justice
- D. Open society

Answer: D

Explanation: The canonical Basic owner pairs **A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaubu, PDF p.433)** with **Open society**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 5

An official is assessed only on consistent administration of existing general rules. Which statement identifies the relevant standard?

- A. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440).
- B. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- C. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443).
- D. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.

Answer: A

Explanation: The canonical Basic owner pairs **Justice according to law** with **This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 6

A judge applies a valid general rule consistently and without favour while leaving its moral merits undecided. Which approach is being used?

- A. Milton Friedman
- B. Justice according to law
- C. Recognition link
- D. Social justice

Answer: B

Explanation: The canonical Basic owner pairs **This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaub, PDF pp.439-440).** with **Justice according to law**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 7

A court confronts a valid rule whose content is morally oppressive. Which statement identifies the question that validity alone cannot settle?

- A. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaub, PDF pp.434-435, 443).
- B. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- C. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaub, PDF p.440).
- D. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.

Answer: C

Explanation: The canonical Basic owner pairs **Law according to justice** with **This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaub, PDF p.440).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 8

A statute is administered flawlessly but entrenches an indefensible status hierarchy. Which approach asks whether the statute itself is just?

- A. Robert Nozick
- B. Justice
- C. Political justice
- D. Law according to justice

Answer: D

Explanation: The canonical Basic owner pairs **This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaub, PDF p.440).** with **Law according to justice.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 9

A legal system is being tested both for impartial administration and for the justice of its rules. Which statement captures that two-sided dimension?

- A. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaub, PDF pp.439-440).
- B. In Gaub's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaub, PDF pp.438-442).
- C. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaub, PDF pp.443-445).
- D. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.

Answer: A

Explanation: The canonical Basic owner pairs **Legal justice** with **Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaub, PDF pp.439-440).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 10

A reform combines impartial adjudication with review of whether the governing law respects defensible values. Which dimension is engaged?

- A. Merit
- B. Legal justice
- C. Open society
- D. Ernest Barker

Answer: B

Explanation: The canonical Basic owner pairs **Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaub, PDF pp.439-440).** with **Legal justice.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 11

Formal voting exists but public power remains organised around privileged groups. Which statement supplies the correct institutional test?

- A. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.
- B. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- C. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubá, PDF pp.440-441).
- D. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.

Answer: C

Explanation: The canonical Basic owner pairs **Political justice** with **Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubá, PDF pp.440-441)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 12

Elections exist, but wealthy groups monopolise candidature and criticism of government is suppressed. Which dimension identifies the defect?

- A. Need
- B. Justice according to law
- C. Procedural justice
- D. Political justice

Answer: D

Explanation: The canonical Basic owner pairs **Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubá, PDF pp.440-441)** with **Political justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 13

A constitutional order protects equal status while exploitation and material exclusion persist. Which statement identifies the missing dimension?

- A. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubá, PDF pp.441-442).
- B. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- C. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- D. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubá, PDF pp.439-440).

Answer: A

Explanation: The canonical Basic owner pairs **Socio-economic justice** with **Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubá, PDF pp.441-442)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 14

Equal legal rights coexist with exploitative work, material deprivation and blocked access for weaker sections. Which dimension is missing?

- A. Desert
- B. Socio-economic justice
- C. Law according to justice
- D. Substantive / distributive justice

Answer: B

Explanation: The canonical Basic owner pairs **Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442)**, with **Socio-economic justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 15

Everyone follows the same published competition rules. Which statement states what this proves, without claiming that the result is substantively fair?

- A. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- B. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).
- C. Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444).
- D. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.

Answer: C

Explanation: The canonical Basic owner pairs **Procedural justice** with **Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 16

A competition uses published rules, neutral judges and a ban on cheating but does not examine contestants' starting positions. Which approach is illustrated?

- A. Recognition link
- B. Legal justice
- C. Social justice
- D. Procedural justice

Answer: D

Explanation: The canonical Basic owner pairs **Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444)**, with **Procedural justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 17

A formally neutral scheme leaves poorer participants unable to use the opportunity. Which statement gives Gauba's outcome-sensitive concern with the necessary caveat?

- A. In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gauba, PDF pp.442-445).
- B. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- C. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gauba, PDF pp.443-445).
- D. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gauba, PDF pp.440-441).

Answer: A

Explanation: The canonical Basic owner pairs **Substantive / distributive justice** with **In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gauba, PDF pp.442-445).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 18

An examination is formally open, yet only an affluent minority can obtain the preparation needed to compete. Which Gauba-specific concern tests actual life-chances?

- A. Justice
- B. Substantive / distributive justice
- C. Political justice
- D. Plato

Answer: B

Explanation: The canonical Basic owner pairs **In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gauba, PDF pp.442-445).** with **Substantive / distributive justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 19

A movement demands transformation of an oppressive arrangement as a matter of right. Which statement distinguishes that claim from welfare charity?

- A. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).
- B. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441).
- C. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442).
- D. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.

Answer: C

Explanation: The canonical Basic owner pairs **Social justice** with **In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 20

A disadvantaged group demands structural reform as its due from organised social life rather than discretionary charity. Which concept applies?

- A. Open society
- B. Socio-economic justice
- C. Ernest Barker
- D. Social justice

Answer: D

Explanation: The canonical Basic owner pairs **In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442)** with **Social justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 21

A theory locates justice in coordinated functions under reason rather than in an external distribution. Which statement reconstructs that position accurately?

- A. Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).
- B. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.
- C. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- D. A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gauba, PDF p.433).

Answer: A

Explanation: The canonical Basic owner pairs **Plato** with **Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 22

A city is called just when rulers, auxiliaries and producers perform differentiated functions under reason. Which thinker supplies this model?

- A. Justice according to law
- B. Plato
- C. Procedural justice
- D. F.A. Hayek

Answer: B

Explanation: The canonical Basic owner pairs **Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439)** with **Plato**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 23

An examiner asks how justice integrates three political ideals and gives law moral value. Which statement supplies the correct answer?

- A. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- B. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- C. Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gauba, PDF pp.436-440).
- D. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gauba, PDF pp.439-440).

Answer: C

Explanation: The canonical Basic owner pairs **Ernest Barker** with **Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gauba, PDF pp.436-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 24

An answer treats justice as the principle ordering liberty, equality and fraternity and also tests law's moral value. Which thinker anchors it?

- A. Law according to justice
- B. Substantive / distributive justice
- C. John Rawls
- D. Ernest Barker

Answer: D

Explanation: The canonical Basic owner pairs **Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaub, PDF pp.436-440)**. with **Ernest Barker**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 25

A lawyer refuses extra-legal moral judgment and asks whether rules were general and impartially applied. Which statement matches that position?

- A. Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaub, PDF pp.439-440).
- B. Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.
- C. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- D. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaub, PDF p.440).

Answer: A

Explanation: The canonical Basic owner pairs **Alf Ross** with **Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaub, PDF pp.439-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 26

An administrator defines legal justice through general rules correctly and impartially applied, without invoking an external moral absolute. Who is being followed?

- A. Legal justice
- B. Alf Ross
- C. Social justice
- D. C.B. Macpherson

Answer: B

Explanation: The canonical Basic owner pairs **Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaub, PDF pp.439-440)**. with **Alf Ross**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 27

A student incorrectly lists liberty, opportunity and difference as three independent principles. Which statement repairs the ordering?

- A. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- B. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- C. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443).
- D. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440).

Answer: C

Explanation: The canonical Basic owner pairs **John Rawls** with **Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 28

Parties choose principles without knowing their social position and give equal basic liberties priority over the second principle. Which thinker is involved?

- A. Political justice
- B. Plato
- C. Distributive justice
- D. John Rawls

Answer: D

Explanation: The canonical Basic owner pairs **Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443)** with **John Rawls**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 29

A market exchange is formally voluntary but takes place under severe dependence. Which statement explains why the background may defeat fairness?

- A. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).
- B. Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gaubu, PDF pp.432-433).
- C. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441).
- D. Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gaubu, PDF pp.438-439).

Answer: A

Explanation: The canonical Basic owner pairs **C.B. Macpherson** with **Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 30

A formally voluntary labour contract leaves the worker without realistic alternatives and weakens creative self-development. Which critic best explains the background defect?

- A. Socio-economic justice
- B. C.B. Macpherson
- C. Ernest Barker
- D. Corrective (rectificatory) justice

Answer: B

Explanation: The canonical Basic owner pairs **Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445)** with **C.B. Macpherson**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 31

A community must allocate common offices before any transactional wrong occurs. Which statement gives the correct classical rule?

- A. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- B. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442).
- C. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.
- D. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.

Answer: C

Explanation: The canonical Basic owner pairs **Distributive justice** with **Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 32

A polis assigns honours and offices in geometric proportion to a publicly relevant standard of worth. Which Aristotelian category applies?

- A. Procedural justice
- B. Alf Ross
- C. F.A. Hayek
- D. Distributive justice

Answer: D

Explanation: The canonical Basic owner pairs **Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares**. with **Distributive justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 33

A bilateral transaction creates an unjust gain and corresponding loss. Which statement identifies the remedy without turning it into punishment?

- A. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- B. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- C. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440).
- D. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).

Answer: A

Explanation: The canonical Basic owner pairs **Corrective (rectificatory) justice** with **Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 34

A court removes one party's unjust transactional gain and restores the other's loss without ranking their social merit. Which Aristotelian category applies?

- A. Substantive / distributive justice
- B. Corrective (rectificatory) justice
- C. John Rawls
- D. Milton Friedman

Answer: B

Explanation: The canonical Basic owner pairs **Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.** with **Corrective (rectificatory) justice.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 35

A decentralised market outcome has no single distributor. Which statement gives the rule-centred objection to judging its pattern?

- A. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- B. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).
- C. Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.
- D. In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gaubu, PDF pp.442-445).

Answer: C

Explanation: The canonical Basic owner pairs **F.A. Hayek** with **Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 36

No central agent designed a market's final pattern, so a theorist denies that the spontaneous pattern itself can be called socially just or unjust. Who argues this?

- A. Social justice
- B. C.B. Macpherson
- C. Justice
- D. F.A. Hayek

Answer: D

Explanation: The canonical Basic owner pairs **Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.** with **F.A. Hayek**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 37

An exchange is defended because it is voluntary and uncoerced. Which statement reconstructs the procedural claim being made?

- A. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- B. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- C. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaub, PDF pp.439-440).
- D. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaub, PDF pp.438-442).

Answer: A

Explanation: The canonical Basic owner pairs **Milton Friedman** with **Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 38

A theorist treats an uncoerced exchange under freedom of contract as procedurally legitimate despite the inequality it produces. Who is represented?

- A. Plato
- B. Milton Friedman
- C. Distributive justice
- D. Merit

Answer: B

Explanation: The canonical Basic owner pairs **Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.** with **Milton Friedman**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 39

A present holding has a voluntary recent transfer but a disputed history. Which statement identifies all parts of the entitlement test?

- A. Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gauba, PDF pp.432-433).
- B. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gauba, PDF pp.440-441).
- C. Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) justice in acquisition, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) justice in transfer through voluntary exchange, gift or bequest from a just holding; and (iii) justice in rectification where acquisition or transfer was unjust .
- D. Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).

Answer: C

Explanation: The canonical Basic owner pairs **Robert Nozick** with **Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) justice in acquisition, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) justice in transfer through voluntary exchange, gift or bequest from a just holding; and (iii) justice in rectification where acquisition or transfer was unjust .** The other options are valid source terms or statements, but belong to different pairings.

MCQ 40

A claimant traces a holding through acquisition and voluntary transfer but must also answer a proviso and past injustice. Which theorist supplies the test?

- A. Ernest Barker
- B. Corrective (rectificatory) justice
- C. Need
- D. Robert Nozick

Answer: D

Explanation: The canonical Basic owner pairs **Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) justice in acquisition, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) justice in transfer through voluntary exchange, gift or bequest from a just holding; and (iii) justice in rectification where acquisition or transfer was unjust** . with **Robert Nozick**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 41

A selector wants to reward demonstrated ability or performance. Which statement identifies the distributive criterion?

- A. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- B. A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaubu, PDF p.433).
- C. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442).
- D. Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaubu, PDF pp.436-440).

Answer: A

Explanation: The canonical Basic owner pairs **Merit** with **Demonstrated ability, achievement or performance (e.g., examination rank, productivity)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 42

A public honour is assigned for demonstrated achievement rather than need or sacrifice. Which distributive criterion is being used?

- A. Alf Ross
- B. Merit
- C. F.A. Hayek
- D. Law according to justice

Answer: B

Explanation: The canonical Basic owner pairs **Demonstrated ability, achievement or performance (e.g., examination rank, productivity)**. with **Merit**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 43

A welfare authority first secures subsistence, health and education. Which statement identifies the criterion without accepting the incentive objection as settled?

- A. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440).
- B. Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444).
- C. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- D. Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaubu, PDF pp.439-440).

Answer: C

Explanation: The canonical Basic owner pairs **Need** with **Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 44

Health support is prioritised by the requirements of a decent life rather than productivity or earned contribution. Which criterion applies?

- A. John Rawls
- B. Milton Friedman
- C. Recognition link
- D. Need

Answer: D

Explanation: The canonical Basic owner pairs **Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability**, with **Need**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 45

A reward is defended as morally earned through effort or sacrifice. Which statement distinguishes this from raw ability and bare requirement?

- A. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- B. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).
- C. In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gaubu, PDF pp.442-445).
- D. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443).

Answer: A

Explanation: The canonical Basic owner pairs **Desert** with **Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 46

Two equally talented persons receive different rewards because one made a greater voluntary effort and sacrifice. Which criterion is invoked?

- A. C.B. Macpherson
- B. Desert
- C. Robert Nozick
- D. Justice

Answer: B

Explanation: The canonical Basic owner pairs **Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need)**. with **Desert**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 47

Material transfers improve while status injury and political exclusion continue. Which statement identifies the companion justice lens?

- A. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440).
- B. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442).
- C. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- D. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).

Answer: C

Explanation: The canonical Basic owner pairs **Recognition link** with **Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 48

A policy changes income transfers but leaves stigma, status subordination and exclusion from rule-making untouched. Which Fraser-related dimension remains unresolved?

- A. Distributive justice
- B. Merit
- C. Open society
- D. Recognition link

Answer: D

Explanation: The canonical Basic owner pairs **Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis. with Recognition link.** The other options are valid source terms or statements, but belong to different pairings.

PYQS AND ANSWER PRACTICE

Cross-application ownership note: These are verified Philosophy Optional questions whose primary owners are Social and Political Ideals, Crime and Punishment, Development and Social Progress, Gender Discrimination, Caste Discrimination: Gandhi and Ambedkar. They are not re-routed to Political Theory; they are included because this topic provides a directly usable supporting framework.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 1 - 2019 Q1(a), 10 marks

Question: How far do you think John Rawls is continuing with Plato's concept of justice?

Model solution

Thesis. Rawls continues Plato only in a broad architectonic sense -- justice as the virtue that structures a well-ordered whole -- and breaks with him radically on method, citizenship and equality. State the criterion of "continuity" first.

- **Continuity.** For Plato, justice is right-order: each part of soul and city performs its own function in harmony. For Rawls, justice is the first virtue of the basic structure -- fair terms of cooperation among free and equal persons. Both make justice the ORDERING virtue of the social whole, not one desire among others.

- **Break 1 -- method.** Plato reaches justice through the metaphysics of the Forms and functional differentiation; Rawls through a hypothetical device, the original position under a veil of ignorance -- a device of representation, not a cosmology.

- **Break 2 -- equality and citizenship.** Plato's order is a fixed hierarchy of natural kinds; Rawls builds in equal basic liberties and fair equality of opportunity for equal citizens, explicitly rejecting caste-like closure.

Verdict. The continuity is thin (justice as the structure of a good society); the discontinuity is deep (democratic-egalitarian method against fixed hierarchy). Rawls inherits Plato's QUESTION, not his ANSWER.

MEMORY: Why this earns marks -- it names the axis of continuity before judging, and separates a shared question from opposed answers instead of forcing a single verdict.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 2 - 2021 Q1(a), 10 marks

Question: Discuss critically the distributive theory of justice as propounded by R. Nozick.

Model solution

Thesis. Nozick's is a HISTORICAL (entitlement) theory, not a distributive one in the patterned sense: a distribution is just if it arose through just steps, whatever its final shape. Powerful as a warning, it is incomplete on its own premises.

- **Doctrine.** Justice in holdings has three principles -- justice in ACQUISITION

(how unowned things are first justly held), justice in TRANSFER (voluntary exchange and gift) and justice in RECTIFICATION (correcting past injustice). There is no required end-state pattern.

- **Historical vs patterned.** Patterned principles (equality, need, merit) judge

the shape of the distribution; historical principles judge the PROCESS. The Wilt Chamberlain argument shows that if people freely pay to watch him, the resulting inequality is just, and maintaining any fixed pattern would require continuous interference with voluntary transfers.

- **Critique.** The acquisition and rectification principles are the weakest

links: both need an independent criterion, and real starting distributions are tainted by conquest, coercion and background injustice, so "voluntariness" is rarely clean.

Verdict. Nozick's side-constraint, self-ownership warning against overreaching redistribution is a permanent contribution; but because his own foundational principles are under-specified, entitlement theory cannot bypass the problem of unjust starting points.

MEMORY: Why this earns marks -- it fixes the historical/patterned distinction, uses Wilt Chamberlain as argument (not decoration), and lands the critique on acquisition/rectification.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 3 - 2021 Q2(a), 20 marks

Question: Discuss whether Amartya Sen's idea of justice is an improvement upon Rawl's theory of justice.

Model solution

Thesis. Whether Sen improves on Rawls is CRITERION-RELATIVE: judged by attention to realised freedom and remediable injustice Sen improves on Rawls; judged by the need for determinate institutional principles Rawls retains the advantage. Name the test before applying it.

- **Rawls in brief.** A just basic structure chosen behind the veil of ignorance:

equal basic liberties, fair equality of opportunity and the difference principle. Its focus is ideal, transcendental and institution-centred.

- **Sen's reorientation.** Sen contrasts NITI (correctness of rules and institutions) with NYAYA (justice realised in actual lives). A society may have fine rules yet produce grave injustice, so we should COMPARE feasible social states and remove manifest injustice rather than seek one perfectly just structure; the metric is CAPABILITIES, refined through PUBLIC REASONING.

- **The improvement, assessed.** By the criterion of realised freedom, Sen improves on Rawls -- primary goods ignore the diversity of conversion into real freedom, and transcendental design can neglect how people actually fare. But by the criterion of institutional determinacy, comparative ranking without an ideal benchmark can under-determine choice among rival improvements.

- **Rawlsian reply.** Institutions remain indispensable preconditions of justice; comparison still presupposes standards the ideal theory helps supply.

Verdict. Sen improves on Rawls in ORIENTATION (from arrangements to lives, from resources to capabilities), but does not simply supersede him; "improvement" holds only on a stated criterion, and both are needed.

MEMORY: Why this earns marks -- it states the criterion of improvement first, uses niti/nyaya and capabilities as argument, concedes what Rawls still does better, and gives a criterion-relative verdict.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 4 - 2023 Q1(a), 10 marks

Question: What is meant by justice as fairness? Explain Rawls' theory of justice.

Model solution

Thesis. "Justice as fairness" means that the principles of justice are those that free and equal persons would choose under fair conditions; Rawls builds those conditions into the original position and derives two lexically ordered principles.

- **The device.** In the ORIGINAL POSITION, parties choose principles for the basic structure behind a VEIL OF IGNORANCE -- not knowing their class, sex, talents, religion or conception of the good. Ignorance of arbitrary advantage makes the choice fair; it is a device of representation, not a historical contract.
- **The two principles.** (1) Each has an equal claim to a fully adequate scheme of equal BASIC LIBERTIES. (2) Social and economic inequalities must satisfy (a) FAIR equality of opportunity and (b) the DIFFERENCE PRINCIPLE -- they may stand only if they benefit the LEAST ADVANTAGED.
- **Priority and justification.** Liberty is LEXICALLY prior (never traded for economic gain); fair opportunity precedes the difference principle. Justification proceeds by REFLECTIVE EQUILIBRIUM -- mutual adjustment of principles and considered judgments.

Verdict. Justice as fairness is a deontological liberal egalitarianism: liberty is basic, and inequality is tolerated only under fair opportunity and benefit to the least advantaged.

MEMORY: Why this earns marks -- it defines fairness through the fair choice situation, states the principles with their PRIORITY, and adds reflective equilibrium rather than listing slogans.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 5 - 2024 Q1(a), 10 marks

Question: Briefly discuss Plato's concept of justice.

Model solution

Thesis. For Plato, justice is not external distribution but ORDER and HARMONY: each part of the soul and each class of the city performing its own proper function without usurping another's.

- **Soul and city.** In the city, rulers rule, auxiliaries defend and producers provide; in the soul, reason governs spirit and appetite. Justice is the virtue that coordinates plurality into a harmonious whole.

- **What it is not.** Justice is not merely paying debts or obeying law; it is an inner and civic right-order grounded in functional differentiation and the rule of reason.

- **Criticism and reply.** Objection: Plato subordinates individuality to hierarchical functional differentiation. Reply: his aim is competence and organic harmony, and limited movement by aptitude is conceptually possible, so absolute class closure overstates the doctrine. Restricted citizenship, hierarchy and education-controlled selection nevertheless remain major egalitarian costs.

Verdict. Plato's justice is a powerful ideal of harmony and appropriate function; its enduring value is the insight that justice orders the whole, even if its hierarchical role-order is rejected by modern egalitarian citizenship.

MEMORY: Why this earns marks -- it gives the soul-city parallel, distinguishes harmony from distribution, and balances the standard criticism with its reply.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 6 - 2025 Q4(a), 20 marks

Question: How are both equality and liberty inadequate as social and political ideals without justice? Discuss.

Model solution

Thesis. Equality and liberty are indispensable but INADEQUATE by themselves, because each is indeterminate about its own content; justice is the architectonic ideal that supplies the ordering criteria and decides their scope and priority.

- **Why liberty alone is inadequate.** "Liberty" does not tell us WHICH liberties are basic, or how to weigh one person's freedom against another's. A tyrant and a citizen both invoke freedom; negative, positive and republican conceptions pull apart. Only a theory of justice ranks basic liberties and protects them (Rawls's lexical priority).

- **Why equality alone is inadequate.** "Equality" is under-specified -- of status, rights, opportunity, welfare, resources, capability or outcome? Each metric yields different institutions, and without a criterion, equality collapses into either mechanical levelling or empty formalism.

- **What justice supplies.** Justice provides the adjudicatory criteria -- desert, fairness, entitlement, need, capability, rectification and public reason -- that say which inequalities are justified and which liberties are basic. Compare the positions: liberty-first (Nozick) protects self-ownership but lets background injustice hollow real freedom; equality-first levelling flags oppression but flattens choice and desert; justice-as-ordering balances them by principle.

- **Indian anchor.** Ambedkar: political democracy (equal votes, formal liberty) is unstable without SOCIAL democracy -- liberty, equality AND fraternity -- so justice must reach lived social standing, not only procedure.

Verdict. Liberty and equality are the substance of a just society, but justice is its FORM: it is the ideal that disciplines and coordinates the other two, and without it each remains normatively incomplete.

MEMORY: Why this earns marks -- it proves inadequacy by showing each ideal is indeterminate about its own content, compares three ordering positions, anchors in Ambedkar, and ends with the architectonic verdict.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 7 - 2019 Q4(c), 15 marks

Question: Does capital punishment weaken the doctrine of social justice? Discuss.

Model solution

Thesis. Capital punishment weakens the doctrine of social justice not through its abstract concept but through its ADMINISTRATION: because the penalty falls unequally on the poor and marginalised, its practice deepens the very inequalities social justice exists to correct.

- **Doctrine.** The arbitrariness / discrimination objection (canonical 5): quality of counsel, investigative bias and social position skew who is actually sentenced to death, so the penalty tracks disadvantage rather than desert. Proportionate desert (C10) itself demands equal treatment of like cases, which unequal administration violates. Duff's standing argument (C6) sharpens this: a polity that has denied a person the conditions of citizenship has weakened its moral standing to impose the ultimate penalty on him.

- **Objection -> reply.** Objection: these are implementation flaws, curable by procedure, not objections to the penalty in principle. Reply: for an IRREVERSIBLE penalty, systematic unequal application is not a contingent blemish but a reason the practice cannot satisfy the proportionate desert offered to justify it -- the fallibility verdict.

Verdict. Capital punishment weakens social justice because its irreversible and unequal administration entrenches disadvantage; separate the philosophical concept of desert from the socially skewed practice, and it is the practice that fails.

MEMORY: MEMORY: Why this earns marks -- it routes "social justice" through the arbitrariness objection plus Duff's standing (C6), and separates philosophical validity from implementation rather than moralising.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 8 - 2020 Q3(c), 15 marks

Question: Do you think that retributive theory of punishment is against human rights? Discuss.

Model solution

Thesis. Retributive theory is against human rights only in its MAXIMISING form, which sanctifies suffering; in its LIMITING form, desert is precisely what PROTECTS rights, by capping how much the state may inflict.

- **Doctrine.** Distinguish retribution from revenge (canonical Trap 2): public, proportionate, impartial desert versus private, unlimited, appetite-driven payback. Kant treats the offender as an END and a responsible agent, never a mere means to social benefit (C1); Hegel's punishment honours the offender as the author of a maxim now applied to himself (C2). Limiting retributivism makes desert a two-sided CONSTRAINT -- no punishment without desert (floor), none beyond it (ceiling).

- **Objection -> reply.** Objection: retribution licenses cruelty and adds pointless suffering, offending dignity. Reply: the limiting version forbids exactly this, because proportionality caps severity; and the social-inequality objection is met by conceding that unfair background conditions can REDUCE desert, not by abandoning desert.

Verdict. Properly limited, retributivism is a rights-GUARANTEE: by tying punishment to proportionate desert it shields the offender from utilitarian excess. It threatens rights only when it forgets its own ceiling.

MEMORY: MEMORY: Why this earns marks -- it turns the expected "retribution vs rights" clash on its head via limiting retributivism (desert as ceiling, C1/C2) and answers the cruelty and inequality objections directly.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 9 - 2021 Q2(b), 15 marks

Question: Explain the reformative theory of punishment and discuss whether this is in tune with human dignity.

Model solution

Thesis. The reformative theory is in tune with human dignity ONLY when it is bounded -- by consent, proportionality and a determinate ceiling. Unbounded, "treatment" can offend the very dignity it claims to serve.

- **Doctrine.** Reform treats the offender as capable of moral change and aims at rehabilitation, education and reintegration (canonical 1.6). The dignity CASE: this respects the person as an agent with a future rather than fixing a permanent criminal identity. The dignity WORRY: an indeterminate "cure-first, release-later" sentence hands officials open-ended power, and Foucault (C7) warns that a "gentle" reformative apparatus can intensify discipline and normalisation rather than liberate.

- **Objection -> reply.** Objection: pure reform is paternalistic and desert-blind -- it could detain a minor offender indefinitely until "cured" while releasing a "reformed" serious offender, offending proportionality. Reply: the mixed theory bounds reform as an AIM within desert LIMITS (a proportionate ceiling), which preserves both the forward-looking good and the person's dignity.

Verdict. Reform is in tune with dignity when it is consent-respecting, proportionate and determinate; it violates dignity when it becomes coercive, open-ended normalisation.

MEMORY: MEMORY: Why this earns marks -- it gives a CONDITIONAL yes, states reform's dignity credentials AND the Foucault/indeterminacy dangers (C7), and resolves via the bounded mixed theory.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 10 - 2023 Q4(a), 20 marks

Question: "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.

Model solution

Thesis. I agree that severity should be proportionate to seriousness, and that the NATURE of a juvenile's crime is a relevant input -- but it must not OVERRIDE the reduced culpability of a developmentally immature agent, whose desert, and therefore deserved severity, is lower.

- **What makes it hard.** The stem pits the seriousness of the ACT against the status of the OFFENDER, and it forces a choice only if we conflate the two.

- **Doctrine.** Proportionality has two dimensions (C10): ordinal proportionality ranks worse crimes above lesser ones; cardinal proportionality fixes the overall severity scale. The maxim in the stem is ordinal. Crucially, desert presupposes responsible agency (canonical 1.2); a juvenile's capacities for deliberation and self-control are still forming, so CULPABILITY -- the basis of desert -- is reduced (the responsibility gradient). Reformative prospects are also greater (canonical 1.6), and restorative / reintegrative approaches (C8, C9) fit the juvenile case. Separating the three questions (C4) shows the AIM (prevent harm, reform) does not settle the AMOUNT (desert-capped severity).

- **Objection -> reply (two chains).** (1) Objection: grave crimes are grave whoever commits them, so a heinous juvenile act warrants adult severity. Reply: the seriousness of the act is not irrelevant, but proportionate desert tracks culpability, which immaturity reduces -- so nature is one INPUT, not an OVERRIDE. (2) Objection: reduced culpability means impunity and ignores victims. Reply: reduced is not zero; a proportionate, reform-oriented and restorative response answers victims without treating a child as an adult.

- **Critical qualification.** Foucault's caution (C7): open-ended "treatment" of juveniles risks disciplinary control, so keep a determinate ceiling. Indian juvenile-justice and proportionality principles are legal facts (C15), not philosophical proofs, and no specific holding is asserted here.

Verdict. Agree with proportionality; in juvenile cases weigh the nature of the crime as ONE factor within a desert reduced by developmental immaturity -- individualised justice that neither trivialises grave harm nor punishes a child as an adult.

MEMORY: MEMORY: Why this earns marks -- a 20-marker that separates the three questions (C4), deploys ordinal/cardinal proportionality (C10) and the responsibility gradient, runs two objection chains, and lands a genuinely graded verdict.

Primary owner: Philosophy Paper II - Development and Social Progress.

Solved PYQ 11 - 2022 Q3(a), 20 marks

Question: Do you agree that economic development does not on its own lead to human development and social progress? Give reasons and justifications for your answer.

Model solution

Directive: *Do you agree... Give reasons and justifications* - take a defended position, argue both sides, and justify a graded conclusion.

Thesis. I largely agree: **economic development does not, on its own, lead to human development and social progress.** It is at most a *necessary enabler*; whether it becomes human development and progress depends on **conversion, distribution, agency and ecological limits.**

The ladder that grounds the claim. Distinguish **growth** (more output/income), **development** (structural + human change), and **social progress** (a *justified*, value-level improvement). Economic development sits on the lower rungs; human development (capabilities) and progress (normative) are higher rungs that the lower does not guarantee.

Reasons economic development alone is insufficient.

- *Distribution gap*: aggregate income can rise while inequality, exclusion and displacement rise with it - averages hide who gains.
- *Conversion gap (Sen)*: the same income yields different real freedoms depending on **conversion factors** (disability, gender norms, environment); income is a means, capability is the measure.
- *Recognition*: redistribution of goods can leave **status hierarchies** (caste, gender, disability) intact - progress needs recognition too.
- *Agency and democracy*: development that treats people as beneficiaries but not **agents** misses a constitutive part of a developed life.
- *Ecological limit*: growth that offloads costs onto the future or the poor is not progress (the sustainability/justice frame).

Justification via the necessary/sufficient point. Some material base is plausibly a **necessary enabling condition** for broad capabilities - so economic development is not worthless. But it is **not sufficient**: it must be *converted*, *distributed* and *bounded* to count as human development and progress.

Objection and reply. *Objection*: no society achieved broad progress without economic development, so the two go together. *Reply/residual*: that shows economic development is an **enabler**, not that it is the *cause* - the enabling base still has to be converted by just institutions and agency; where it was not, growth coexisted with deprivation.

Graded verdict. Agree, with precision: economic development is a **necessary-enabling but not sufficient** condition; it becomes human development and social progress only through **just conversion into capabilities, recognition, democratic agency and ecological limits.**

Why this earns marks: it takes a clear stance, uses the ladder + capability map + recognition + democracy + ecology as *reasons*, answers the strongest counter (co-occurrence), and lands a qualified, defended verdict.

Primary owner: Philosophy Paper II - Gender Discrimination.

PYQ 12 - 2025 · 1(b) (10 marks)

Question: How does gender as a social construct affect individuals' opportunities, rights, and access to resources? Critically discuss.

Thesis / opening: Gender, as a social rather than biological construct in Beauvoir's and Butler's sense, shapes the opportunities, rights, and resource access individuals are granted or denied well before any individual merit is considered.

Model answer structure:

- Once woman is constructed as Other (Beauvoir) and gender is reproduced through performative repetition (Butler), that constructed meaning is used to justify differential access: to education and employment (opportunity), to inheritance and representation (rights, per Sessions 5 and 7), and to land, credit, and property (resources, per Session 5's five-level analysis). Because the construction is social rather than natural, the resulting inequality is a matter of formal versus substantive equality (Session 3) rather than an unavoidable fact of nature.
- Objection: if gender is 'only' a construct, one could argue the resulting disadvantage is not 'real' in the way material biological constraint is real, understating the urgency of reform. Reply: constructed does not mean unreal or trivial -- socially constructed disadvantage has entirely real material consequences (land denial, foeticide, exclusion from representation), and being constructed is precisely what makes it remediable through social and legal change.

Conclusion: Gender as a social construct systematically structures unequal opportunity, rights, and resource access; its constructed status is a reason for urgency and remediability, not for dismissal.

Why this earns marks: It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

Primary owner: Philosophy Paper II - Caste Discrimination: Gandhi and Ambedkar.

PYQ 13 - 2023 · Q3(b) (15 marks)

Question: Critically analyse the social and political significance of Ambedkar's notion of annihilation of caste.

Thesis / opening: Annihilation is socially significant because it makes fraternity and association possible, and politically significant because it makes representation and equal citizenship real.

Model answer structure:

- Trace caste sanction, endogamy and graded inequality.
- Explain why reform of untouchability alone leaves the foundation intact.
- Social significance: free association, inter-caste kinship and fraternity.
- Political significance: autonomous organisation, rights, representation and social democracy.
- Raise legalism/state-competence limits and reply through the wider programme.

Conclusion: The doctrine seeks abolition of hereditary valuation, not merely adjustment of access to offices.

Why this earns marks: It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Justice concerns rightness rather than mere utility and orders liberty, equality and fraternity. Explain. Answer in about 150 words.

Model solution

Introduction: Gauba introduces justice as a standard of right allocation rather than a simple calculation of aggregate advantage. The claim does not make every utilitarian account impossible; it rejects the sacrifice of what is right merely because doing so produces a larger total benefit.

Core analysis: Barker supplies the ordering principle. Liberty cannot mean an unlimited licence through which the stronger destroys another's freedom, so it must be equal and regulated. Formal equality also remains shallow where unequal bargaining power and deprivation persist. Fraternity then converts concern for weaker members from discretionary charity into a claim arising from common social life. Justice integrates these values by deciding how each qualifies the others in institutions, rights and distribution.

Critical evaluation: The formula can become vague unless the allocation rule, affected group and institution are specified. A good answer therefore uses the triad as a test of arrangements, not as three decorative slogans.

Conclusion: Justice is therefore not another isolated ideal: it is the reasoned ordering that protects equal liberty, corrects structural inequality and turns fraternity from charity into reciprocal social membership.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 2 - 10 marks

Question: Distinguish Aristotle's distributive and corrective justice. Why should neither be confused with retributive or restorative justice? Answer in about 150 words.

Model solution

Introduction: Aristotle separates justice in the distribution of common advantages from justice that corrects a wrong between particular parties. The distinction concerns different objects, standards and institutional tasks.

Core analysis: Distributive justice allocates offices, honours or goods according to geometric proportion and a relevant standard of worth. Corrective justice restores arithmetic equality in a bilateral transaction by correcting unjust gain and loss without ranking the parties by merit. Retributive justice instead concerns proportionate censure or punishment for wrongdoing, while restorative justice seeks repair of harm, responsibility and restored relations through a wider process. The latter two belong to penal philosophy and cannot be inferred merely from Aristotle's transactional correction.

Critical evaluation: Corrective remedies may overlap practically with compensation or repair, but conceptual overlap is not identity. Maintaining the boundaries prevents one vocabulary from silently answering four different questions.

Conclusion: Aristotle's distinction remains analytically useful only when allocation and bilateral rectification are kept separate from the penal aims of censure, punishment, repair and reconciliation.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 3 - 15 marks

Question: Distinguish justice according to law from law according to justice. Show how legal, political and socio-economic justice expose the limits of mere legality. Answer in about 200 words.

Model solution

Introduction: Justice according to law asks whether valid rules are general, efficiently administered and impartially applied. Law according to justice asks the prior question whether those rules possess defensible moral value.

Core analysis: Alf Ross represents the first concern and Ernest Barker the second. Legal justice requires both non-arbitrary administration and scrutiny of legal content. Political justice tests whether institutions, rights, criticism and association distribute public power democratically rather than preserving privileged control. Socio-economic justice asks whether exploitation, deprivation and unequal material power hollow out formally equal legal and political status. A rule may therefore be impeccably administered while excluding a group from effective voice, courts or social opportunity.

Further development: The dimensions also constrain one another. Democratic enactment cannot by itself justify exclusion, moral aspiration cannot replace predictable law, and welfare provision cannot compensate for the denial of political voice. Justice requires institutional channels through which validity, value and material effect can be publicly tested together.

Critical evaluation: Moral review must not license officials to ignore enacted law whenever they disagree. The defensible settlement joins legality, public justification and institutional procedures for criticism and reform.

Conclusion: Legality is indispensable for non-arbitrary rule, but justice requires institutions whose content, distribution of power and material consequences can also withstand moral and democratic scrutiny.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 4 - 15 marks

Question: Is fair procedure sufficient for justice? Discuss through procedural liberalism, Macpherson's criticism and the substantive-justice response. Answer in about 200 words.

Model solution

Introduction: Procedural justice protects general rules, impartial application and freedom from force or fraud. These safeguards are indispensable because outcome-focused authority without due process can become arbitrary.

Core analysis: Gauba groups Hayek, Friedman and Nozick as procedure-centred liberals, although their doctrines differ: Hayek defends general rules and spontaneous order, Friedman voluntary exchange, and Nozick a historical entitlement theory of acquisition, transfer and rectification. Macpherson's objection targets the background conditions under which such procedures operate. Severe inequality can make a formally voluntary contract the product of dependence and can deny ordinary people the developmental freedom required for meaningful competition. Substantive justice therefore adds minimum needs, usable opportunity and attention to weaker parties.

Critical evaluation: Substance cannot erase procedure, and unequal outcomes do not automatically prove injustice. The qualified conclusion is that procedure is necessary but must be tested against background power and a defensible social floor.

Conclusion: Fair procedure is necessary but insufficient: rules earn legitimacy only when background power does not convert formally equal participation into predictable exclusion and when a defensible social minimum is secured.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 5 - 20 marks

Question: Compare Rawls, Nozick and Sen on the procedure, object and institutional requirements of justice. Answer in about 250 words.

Model solution

Introduction: Rawls, Nozick and Sen disagree about what justice evaluates, how its principles are selected and what institutions must do. Their theories should therefore be compared through procedure, object and remedy rather than placed on one left-right scale.

Core analysis: Rawls uses the original position and veil of ignorance to select two ordered principles governing the basic structure: equal basic liberties have priority, while the second principle contains fair equality of opportunity before the difference principle. Nozick rejects patterned end-state allocation and asks whether holdings arose through just acquisition and transfer, with rectification for historical injustice under a Lockean proviso. Sen shifts attention from ideal institutional design and resource shares to capabilities, actual lives, remediable injustice and comparative public reasoning.

Further development: Their temporal orientations differ as well. Rawls asks which enduring principles should regulate a fair basic structure; Nozick reconstructs the history that produced present holdings; Sen compares actual states to identify remediable injustice. A complete evaluation therefore distinguishes ideal design, historical legitimacy and practical improvement.

Critical evaluation: Rawls supplies a demanding institutional benchmark, Nozick exposes the importance of history and coercion, and Sen reveals informational and realisation gaps. Their standards remain rival: capability comparison cannot simply be inserted into entitlement, and rectification does not settle the design of fair institutions.

Conclusion: The strongest synthesis keeps Rawls's fair institutional structure, Nozick's historical and rectificatory challenge, and Sen's comparative attention to actual capability while refusing to collapse their rival standards into one formula.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.

Original Mains Practice 6 - 20 marks

Question: Modern social justice requires redistribution, recognition, representation and duties beyond present national citizens. Critically examine with reference to affirmative action and global, intergenerational and environmental justice. Answer in about 250 words.

Model solution

Introduction: Modern social justice expands the question of fair shares into status, political voice and the temporal and territorial reach of obligation. Distribution alone cannot explain every patterned exclusion.

Core analysis: Redistribution addresses resources and opportunities; recognition addresses institutionalised status injury; representation asks who can participate as a peer in framing binding rules. Fraser's mature framework connects these dimensions through parity of participation. Affirmative action is therefore better justified through substantive equality, anti-subordination, representation and historical exclusion than as ordinary need-based welfare. Global justice asks how cross-border institutions and inequalities generate duties, while intergenerational and environmental justice test whether present benefits externalise irreversible burdens onto future persons and ecological systems. The 2026-27 National Overseas Scholarship can illustrate group-sensitive opportunity and representation without proving any one theory.

Further development: Representation also determines who defines the relevant harm. Future persons and distant populations cannot participate on ordinary electoral terms, so institutions need trusteeship, public reason, scientific evidence and review without pretending to speak infallibly for absent interests. This makes accountability a central part of expanded justice.

Critical evaluation: The expansion creates difficult questions about duty-bearers, democratic accountability and trade-offs with present deprivation. A defensible approach specifies the institution causing or capable of remedying harm, protects agency, and subjects group-sensitive measures to transparent review rather than assuming every unequal outcome requires one identical remedy.

Conclusion: Modern justice must connect resources, status and political voice across time and borders, but every extension still requires specified duty-bearers, accountable institutions and safeguards against both exclusion and paternalism.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.